the remand order. Appellants then waived their right to an evidentiary hearing on the issue whether the statute's classification bore a rational relationship to the two purposes found by the Circuit Court to be legitimate, and they requested a final determination of the legal issues with respect to their equal protection challenge to the statute. The Supreme Court denied certiorari on all claims. Appellants again waived their rights to an evidentiary hearing on the rational relationship issue and filed a joint motion with the other parties seeking rehearing and entry of a final judgment. The motion was granted, and judgment was entered for the State and the intervenors. 447 So. 2d 142 (1983). This appeal followed, and we noted probable jurisdiction. 466 U. S. 935 (1984). We now reverse.

III

Prior to our decision in *Western & Southern Life Ins. Co.* v. *State Board of Equalization of California*, *supra*, the jurisprudence of the applicability of the Equal Protection Clause to discriminatory tax statutes had a somewhat checkered history. *Lincoln National Life Ins. Co.* v. *Read*, 325 U. S. 673 (1945), held that so-called "privilege" taxes, required to be paid by a foreign corporation before it would be permitted to do business within a State, were immune from equal protection challenge. That case stood in stark contrast, however, to the Court's prior decisions in *Southern R. Co.* v. *Greene*, 216 U. S. 400 (1910), and *Hanover Fire Ins. Co.* v. *Harding*, 272 U. S. 494 (1926), as well as to later decisions, in which the Court had recognized that the Equal Protection Clause placed limits on other forms of discriminatory taxation imposed on out-of-state corporations solely because of their residence. See, *e. g.*, *WHYY, Inc.* v. *Glassboro*, 393 U. S. 117 (1968); *Allied Stores of Ohio, Inc.* v. *Bowers*, 358 U. S. 522 (1959); *Wheeling Steel Corp.* v. *Glander*, 337 U. S. 562 (1949).

In *Western & Southern*, *supra*, we reviewed all of these cases for the purpose of deciding whether to permit an equal